

FEDERAL MARITIME COMMISSION

MAHER TERMINALS, LLC

V.

THE PORT AUTHORITY OF NEW YORK
AND NEW JERSEY

Docket 08-03

Served: April 26, 2012

BY THE COMMISSION: Richard A. Lidinsky, Jr.,
Chairman; Joseph E. Brennan, Rebecca F. Dye, Michael A.
Khouri, and Mario Cordero, *Commissioners*.

ORDER GRANTING REQUEST FOR ORAL ARGUMENT AND DENYING REQUEST TO RESPOND TO REPLY

On June 3, 2008, Maher Terminals, LLC (Maher) filed a complaint against the Port Authority of New York and New Jersey's (PANYNJ), seeking a cease and desist order and reparations for injuries caused by violations of the Shipping Act of 1984 (Act). 46 U.S.C. §§ 41106(2) and (3) and 41102(c). Maher alleged that PANYNJ's lease with APM Terminals North America, Inc. (APM) violates the Act by granting and continuing to grant unduly and unreasonably more favorable lease terms than granted to Maher in its lease; that PANYNJ refuses to deal

with Maher regarding the alleged undue and unreasonable preferences; and that PANYNJ negotiated with APM regarding its claims that PANYNJ violated the Act but refused to negotiate with Maher regarding its claims.

The case is now before the Commission on two issues: (1) exceptions filed by Maher to the May 16, 2011, determination of the Administrative Law Judge (ALJ) (Decision), granting the motion by PANYNJ for summary judgment on the grounds that Maher's claim for reparations for violations of the Act is barred by the statute of limitations; and (2) on exceptions filed by PANYNJ to the Decision denying its motion for summary judgment on the grounds that Maher's claim for a cease and desist order is barred by the statute of limitations. Maher requested that the Commission hear oral argument on its exceptions. Maher also seeks permission to respond to PANYNJ's reply to its exceptions.

It is hereby **ORDERED** that Maher's request for oral argument is **GRANTED** and Maher's request to respond to PANYNJ's reply is **DENIED**. The Commission also **ORDERS** oral argument on PANYNJ's exceptions. Oral argument will be limited to the following issues:

1) Whether Maher's claim for reparations for violations of 46 U.S.C. § 41102(c) is barred by 46 U.S.C. § 41301(a).

2) Whether Maher's claim for a cease and desist order is barred by any statute of limitations.

Notice is given that the matter is scheduled for oral argument on May 17, 2012, at 10:00 a.m. in the Commission's Main Hearing Room, 1st Floor, 800 North Capitol Street, N.W. Washington, D.C. 20573. On issue number one, Maher will appear first and will be allotted 20 minutes for argument, a portion of which may be reserved for rebuttal. PANYNJ will be allotted 20 minutes for issue number one. On issue number two,

PANYNJ will appear first and will be allotted 20 minutes for argument, a portion of which may be reserved for rebuttal. Maher will be allotted 20 minutes for issue number two. The parties shall submit to the Secretary of the Federal Maritime Commission, by May 9, 2012, the name of the person who will argue on that party's behalf. This notification shall conform to the service requirements of the Commission's Rules.

By the Commission.

Karen V. Gregory
Secretary